



POLICE DEPARTMENT

October 7, 2014

MEMORANDUM FOR: Police Commissioner

Re: Sergeant James Shaughnessy
Tax Registry No. 902408
26 Precinct
Disciplinary Case No. 2011-6501

Police Officer Edward Rodriguez
Tax Registry No. 943745
26 Precinct
Disciplinary Case No. 2011-6520

Police Officer Euris Paulino
Tax Registry No. 943657
26 Precinct
Disciplinary Case No. 2012-7357

The above-named members of the Department appeared before the Court on June 10, June 12, and June 24, 2014, charged with the following:

Disciplinary Case No. 2011-6501

1. Said Sergeant James Shaughnessy, assigned to the 26th Precinct, while on duty on or about September 2, 2011, in the vicinity of West 122nd Street and Amsterdam Avenue, New York County, having arrived at the scene of a hit and run automobile accident where an individual, identity known to the Department, was seriously injured, did fail to request the response of the precinct Detective Squad, or Highway Unit Accident Investigation Squad, to the scene.

P.G. 217-02, Page 1, Paragraph 3 VEHICLE ACCIDENTS WHICH RESULT
IN DEATH OR SERIOUS INJURY AND
LIKELY TO DIE
P.G. 217-05 LEAVING THE SCENE

2. Said Sergeant James Shaughnessy, assigned to the 26th Precinct, while on duty on or about September 2, 2011, in the vicinity of West 122nd Street and Amsterdam Avenue, New York County, having arrived at the scene of a hit and run automobile accident where an individual, identity known to the Department, was seriously injured, did fail to secure the scene of the accident.

P.G. 217-02, Page 1, Paragraph 9 VEHICLE ACCIDENTS WHICH RESULT
IN DEATH OR SERIOUS INJURY AND
LIKELY TO DIE
P.G. 217-05 – LEAVING THE SCENE

3. Said Sergeant James Shaughnessy, assigned to the 26th Precinct, while on duty on or about September 2, 2011, after attempting to conduct a vehicle stop, and commencing a pursuit of said vehicle, did fail and neglect to notify the Radio Dispatcher.

P.G. 212-39, Page 1, Paragraph 3 VEHICLE PURSUITS

4. Said Sergeant James Shaughnessy, assigned to the 26th Precinct, while on duty on or about September 2, 2011, having directed that a vehicle pursuit be terminated, did fail and neglect to ensure that said vehicle pursuit was terminated.

P.G. 202-17, Page 1, Paragraph 1, Page 2, Paragraph 26 – PATROL SUPERVISOR

5. Said Sergeant James Shaughnessy, assigned to the 26th Precinct, while on duty on or about September 2, 2011, did fail and neglect to fully and properly investigate and ascertain the medical condition of the victim of the hit and run automobile accident described in Specification # 1.

P.G. 202-17, Page 1, Paragraph 9 – PATROL SUPERVISOR

6. Said Sergeant James Shaughnessy, assigned to the 26th Precinct, while on duty on or about September 2, 2011, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Sergeant did fail and neglect to fully and accurately inform the Platoon Commander of the accident victim's condition.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
P.G. 202-17, Page 1, Paragraph 19 – PATROL SUPERVISOR

7. Said Sergeant James Shaughnessy, assigned to the 26th Precinct, while on duty on or about September 2, 2011, after attempting to conduct a vehicle stop, which led to the pursuit of said vehicle, did fail and neglect to prepare a Vehicle Pursuit Report.

P.G. 212-39, Page 2, Paragraph 16 – VEHICLE PURSUITS

Disciplinary Case No. 2011-6520

1. Said Police Officer Edward Rodriguez, assigned to the 26th Precinct, while on duty on or about September 2, 2011, did fail to obey and comply with an order given by Sergeant James Shaughnessy, 26th Precinct, to discontinue a vehicle pursuit.

P.G. 203-03, Page 1, Paragraph 2 COMPLIANCE WITH ORDERS

2. Said Police Officer Edward Rodriguez, assigned to the 26th Precinct, while on duty on or about September 2, 2011, did fail and neglect to make complete and accurate Activity Log entries.

P.G. 212-08, Page 1, Paragraph 1 ACTIVITY LOG

3. Said Police Officer Edward Rodriguez, assigned to the 26th Precinct, while on duty on or about September 2, 2011, after attempting to conduct a vehicle stop, and commencing a pursuit of said vehicle, did fail and neglect to notify the Radio Dispatcher.

P.G. 212-39, Page 1, Paragraph 3 VEHICLE PURSUITS

Disciplinary Case No. 2012-7357

1. Said Police Officer Euris Paulino, assigned to the 26st [sic] Precinct, while on duty on or about September 2, 2011, did fail and neglect to notify the Radio Dispatcher of an attempted vehicle stop, and the subsequent pursuit of said vehicle.

P.G. 212-39, Page 1, Paragraph 3 – VEHICLE PURSUITS

2. Said Police Officer Euris Paulino, assigned to the 26st [sic] Precinct, while on duty on or about September 2, 2011, did fail and neglect to make complete and accurate Activity Log entries.

P.G. 212-08, Page 1, Paragraph 1 – ACTIVITY LOGS

The Department was represented by Javier R. Seymore, Esq., Department Advocate's Office. Respondent Shaughnessy was represented by John D'Alessandro, Esq., The Quinn Law Firm, PLLC. Respondents Rodriguez and Paulino were represented by John Tynan, Esq., Worth, Longworth & London, LLP.

Respondents pleaded Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

RECOMMENDATION

Respondent Shaughnessy is found Guilty of Specification Nos. 4-6, and Not Guilty of Specification Nos. 1-3 and 7. Respondent Rodriguez is found Guilty of Specification Nos. 1 and 2, and Not Guilty of Specification No. 3. Respondent Paulino is found Guilty as charged.

FINDINGS AND ANALYSIS

Respondents were assigned to the 26 Precinct conditions team. At around 1700 hours on Friday, September 2, 2011, they were on patrol in an unmarked police sedan in the area of Broadway and Tiemann Place in Manhattan. Respondent Rodriguez was the driver and Respondent Shaughnessy was his and Respondent Paulino's supervisor. Respondents noticed a green sedan, possibly an Audi, double-parked on the wrong side of the road. The vehicle moved and made a right turn through a red light onto Broadway. Respondents followed. The car next made a left turn onto LaSalle Street, going under the subway overpass, and again Respondents followed.

Respondents testified that halfway down LaSalle, Respondent Shaughnessy instructed Respondent Rodriguez to stop the green vehicle. As Respondent Paulino turned on the grille lights, the suspect vehicle increased speed and went around, on the left side and into traffic, the cars waiting at the red light at the intersection of LaSalle Street and Amsterdam Avenue.

Respondents testified that Respondent Shaughnessy directed Respondent Rodriguez not to pursue the vehicle. Respondent Shaughnessy was concerned about the density of the area in terms of population, businesses and the like. The matter concerned only a reckless driver, and

Respondent Rodriguez did not have a lot of experience driving a police vehicle. According to Respondents, Respondent Paulino turned off the grille lights and Respondent Rodriguez made a right turn onto Amsterdam Avenue. They lost sight of the green vehicle but proceeded to canvass the area for it. Respondents allegedly never saw the vehicle again.

Video surveillance from various nearby properties showed that Respondents' vehicle sped up slightly on LaSalle to pass the stopped cars, but not as fast as the suspect car.

Respondents maintained that their vehicle was not in "pursuit" of the suspect car. This was an important distinction under the Patrol Guide. Rather, Respondents said that they were "following" the car at a slow pace and "canvassing" for it, to see if they encountered it again on renormalized patrol.

The next video surveillance showed the suspect car speeding through the intersection of Amsterdam Avenue and West 123rd Street against a red light, almost hitting a woman with a baby stroller who had entered the crosswalk. The vehicle attempted to make a left onto 123rd but the driver apparently realized that this would be an illegal, wrong-way turn. He corrected course and continued down Amsterdam Avenue.

The video also showed Respondents' vehicle moving through the intersection of Amsterdam Avenue and 123rd through the red light. The woman with the stroller finished crossing the intersection but stopped on the sidewalk to watch a black sedan, consistent with a livery cab, pull over to the side of the street, allowing Respondents' vehicle to pass. It was not clear from the video if Respondents' vehicle had its grille lights activated.

It was at the intersection of West 122nd Street and Amsterdam Avenue that the incident turned tragic. The suspect vehicle, still travelling at a high rate of speed, made a right turn onto 122nd Street. In so doing it violently struck a pedestrian, Person A, 78 years old and a

resident of the area. Shortly thereafter, Respondents' vehicle arrived at the intersection, behind and amid other southbound traffic that had stopped for the collision.

Respondents exited their vehicle. The suspect car apparently already had fled. An ambulance arrived to treat Person A. Respondents contended that she appeared to be not seriously injured. She had a leg injury, and her head was bleeding, but she was conscious. She was transported to the hospital and Respondents followed. There they spoke to Dr. Person B, the woman's treating physician from the emergency room. According to Respondents, they asked Person B if Person A was "likely to die." This too was an important distinction under the Patrol Guide. Person B allegedly told them that the woman was not likely to die and would recover.

The IAB investigator, however, stated at trial that Person B, who did not testify, told him he answered Respondents by saying that if he had to say yes or no strictly under the "likely to die" parameter, his answer was no. According to the investigator, however, Person B told Respondents that due to Person A's age and the severity of her injuries, she eventually would succumb to her injuries and die. According to Person B through the investigator, Respondent Shaughnessy did not want to hear Person B's whole explanation.

Respondents did not declare the scene to be a crime scene. Person A did in fact die about a week later, and the hospital contacted the Highway Unit. They found the video surveillance showing what appeared to be a Department vehicle pursuing the car that hit the woman. Seeing that there had been no report of a "pursuit," the Highway Unit contacted IAB.

Vehicle Pursuits

Several of the specifications hinge on whether Respondents' interaction with the suspect vehicle constituted a "vehicle pursuit" pursuant to Patrol Guide § 212-39. They allegedly should have notified the central radio dispatcher of this, for example, so that other units would be aware of the danger, and so that supervisors could assign other vehicles to the pursuit as needed.

Although § 212-39 details what actions must be taken or avoided during vehicle pursuits, the term itself is not defined. Counsel for Respondent Shaughnessy compared it to the oft-quoted Supreme Court dictum on obscenity: You know it when you see it.

Precedent has developed some guidelines, however. Although the Patrol Guide procedure contemplates that pursuits may involve many police vehicles operating at high speed, a pursuit is not necessarily defined by velocity. See Case Nos. 79740/04 et al., p. 42 (July 21, 2005). In fact, Vehicle and Traffic Law § 1104, which allows authorized emergency vehicles to operate over the speed limit and to disregard signals, recognizes that slowing down as needed in those situations may be necessary to safeguard life or property. Further, the length of the encounter is not dispositive of whether a pursuit occurred. See Martelli v. City of N.Y., 219 A.D.2d 586 (2d Dept. 1995).

A basic general definition, nevertheless, of pursuit can be developed. If a police officer in a vehicle attempts to stop a suspect vehicle, the suspect vehicle resists apprehension, and the officer in her own vehicle continues to actively attempt to stop the suspect vehicle, a pursuit is occurring.

That is what occurred here. The video surveillance provided circumstantial evidence that Respondents were engaged in a vehicle pursuit. When the suspect vehicle started driving away at high speed and crossing the double yellow line on LaSalle Street, Respondents copied that

maneuver at slightly lower speed. They also crossed over into oncoming traffic and made a right turn on red onto Amsterdam. At 123rd Street, Respondents' vehicle is seen moving at a high rate of speed, not as fast as the suspect car but fast nonetheless, and against the red light.

Although there is no audio, the livery cab pulled over for Respondents and the woman with the stroller stopped on the sidewalk to watch them pass through the intersection. This suggests that Respondents were using audible emergency signals.

No grille lights seem visible on any of the videos. This is not dispositive, however. Respondents' vehicle never is seen head-on and the existing sunlight could have interfered with anything showing up on the video. Further, Patrol Guide § 212-39 (5) directs officers to use the vehicle's emergency signaling devices "intelligently." Thus, the non-use of grille lights would not mean that no pursuit occurred.

Finally, form cannot be elevated over substance: simply saying you were "following" a suspect vehicle does not transform the encounter out of a pursuit. No more transformational is the fact that attempted car stops and fleeing suspects happen "every single day in this city" and not all of them are vehicle pursuits. Patrol Guide § 212-39 (24) requires a monthly report of all vehicle pursuits to be compiled for each borough's safety officer, so at least in this respect the Patrol Guide anticipates that pursuits are not infrequent occurrences.

In sum, the evidence demonstrated that it was more likely than not that a vehicle pursuit occurred.

All three Respondents are charged with failing to notify the radio dispatcher that Respondents had begun a vehicle pursuit. This duty, however, properly fell to the recorder, Respondent Paulino. The other two Respondents should not be charged with doing so during such a tense and fast-moving incident. Respondent Paulino thus is found Guilty of Specification

No. 1. Respondents Shaughnessy and Rodriguez each are found Not Guilty of Specification No. 3 against them.

Specification No. 7 against Respondent Shaughnessy charges him with failing to prepare a Vehicle Pursuit Report pursuant to Patrol Guide § 212-39 (16). This Patrol Guide procedure, delegates this responsibility to the patrol supervisor in the precinct of occurrence. Respondent Shaughnessy was not the patrol supervisor, he was the conditions team supervisor. Therefore he is found Not Guilty of Specification No. 7.

Specification No. 4 against Respondent Shaughnessy charges that he, "having directed that a vehicle pursuit be terminated, did fail and neglect to ensure that said vehicle pursuit was terminated." Specification No. 1 against Respondent Rodriguez, the driver of the police vehicle, charges that he failed to obey that order. Although the cited sections of the Patrol Guide for Respondent Shaughnessy here appear to have been a typographical error as they have nothing to do with this case, the Court understands the language of the specification itself to allege that Respondent Shaughnessy failed to supervise his subordinate, Respondent Rodriguez.

Both the Advocate and Respondents Shaughnessy and Rodriguez agreed that Respondent Shaughnessy directed Respondent Rodriguez to cease the pursuit. This tribunal has found, supra, that a pursuit occurred even after this order because following the suspect car under the circumstances constituted a pursuit. Respondent Rodriguez therefore is found Guilty of Specification No. 1. The remaining question is whether Respondent Shaughnessy should be held liable for Respondent Rodriguez's mistake.

Respondent Shaughnessy was the supervisor on the scene of this pursuit. He ordered that it be stopped. When Respondent Rodriguez failed to comply, Respondent Shaughnessy was obligated to take further action to ensure that the pursuit ended. Cf. Case Nos. 2010 2777 &

2011-4550, p. 24 (Nov. 26, 2013) (patrol supervisor guilty of failure to supervise where Patrol Guide gave him the responsibility of filling out certain paperwork, but he delegated this to subordinates and did not follow up). Because Respondent Shaughnessy failed to do so, he is found Guilty of Specification No. 4.

Likely to Die

The next set of specifications against Respondent Shaughnessy focuses on the injuries to Person A. Patrol Guide § 217-02 is the procedure dealing with vehicle collisions. There was a prior version of the procedure in place at the time of the incident here. Old Patrol Guide § 217-02 directed that officers at the scene of a vehicle accident must secure the scene, and must notify the Precinct Detective Squad and the Highway Unit Accident Investigation Squad, only if the injury consisted of a death, or a “serious injury and likely to die” occurred. Respondent Shaughnessy is charged in Specification Nos. 1 and 2 with failing to do these things.

New Patrol Guide § 217-02 uses different language. It refers to vehicle *collisions*, not *accidents*, as the latter term was thought to infer prejudicially a lack of fault. The relevant Highway Unit was renamed the Collision Investigation Squad. The categories of when a scene must be secured and investigators notified was expanded to include collisions with a “critical injury” as defined by Emergency Medical Services at the scene. The procedure was re-written in part to avoid situations like the instant case in which the injured is alive when transported to the hospital but might not be labeled “likely to die.”

Respondents asserted that they responded to the hospital and spoke to the woman’s ER physician, Person B. By their account, they asked Person B a simple question: was

the woman likely to die? They said that he told them, "No." Respondent Shaughnessy explained the situation to his platoon commander, who had no problem with it.

The IAB investigator interviewed Person B. The interview was voice-recorded but apparently was done in a noisy part of the hospital and could not be transcribed meaningfully. The investigator, relying on his worksheet, said that Person B reported he gave Respondents a deeper explanation. He said that he told them the woman would not die that night. Her injuries, however, were serious and eventually would result in her death. According to the investigator, Respondent Shaughnessy did not want to hear his nuanced explanation.

Person B did not testify and the Advocate gave no explanation for his non-appearance. Respondent Shaughnessy's suggestion that he might have been fearful of civil litigation against him and the hospital brought by Person A's survivors is speculative. There was no proof of any litigation and Person B's reluctance could have been due to healthcare-privacy restrictions (the Health Insurance Portability and Accountability Act protects the health information of deceased persons for 50 years after death).

In any event, Person B's account is hearsay. Hearsay is admissible in this forum if it is sufficiently relevant and probative. See People ex rel. Vega v. Smith, 66 N.Y.2d 130, 139 (1985); Matter of Grossman v. Kralik, 217 A.D.2d 625, 626 (2d Dept. 1995); cf. Matter of Andruszkiewicz v. Doherty, 84 A.D.3d 595 (1st Dept. 2011) (hearsay testimony of Sanitation Department investigator, who obtained statement from woman that tipped employee for accepting trade waste, was sufficiently relevant and probative to demonstrate that employee accepted the gratuity).

Person B's account was corroborated by the video and physical evidence. Person A was 78 years old. The video (see DX 3 starting approximately at 04:00) showed the suspect vehicle

violently striking her side, causing her to be swept into the air. Although Respondents apparently did not see the impact, the collision would have resulted in them finding a severely injured person. She was bleeding from her head and leg. She evidently was immobilized and someone had to bring over her purse. In terms of the state of her body, the video showed that she walked cautiously. A younger man that started crossing 122nd Street after her finished first and just avoided getting hit himself. It just is not reasonable that an emergency room doctor under these circumstances simply would have told Respondents “no, she’s not likely.” That would have been a medical opinion of no value.

Specification Nos. 5 and 6 against Respondent Shaughnessy charge, respectively, that he failed to “fully and properly investigate and ascertain the medical condition of the victim” and “fully and accurately inform the Platoon Commander of the accident victim’s condition.” Once again, the cited Patrol Guide § 202-17 procedures, covering patrol supervisors, have nothing to do with this case even if Respondent Shaughnessy had been the patrol supervisor. The Court understands the language of the specifications themselves to allege that Respondent Shaughnessy failed to take certain appropriate supervisory actions. As it is evident that he failed to do both of the charged omissions, he is found Guilty.

Specification Nos. 1 and 2 charge that Respondent Shaughnessy, “having arrived at the scene of a hit and run automobile accident where an individual, identity known to the Department, was seriously injured,” failed to notify the PDS or AIS, and failed to secure the crime scene.

As noted supra, however, Old Patrol Guide § 217-02, in place at the time of the incident, required that these things only be done, as applicable here, if there was a “serious injury **and** likely to die.” It was undisputed that both conditions had to be met. By writing the

specifications in the way that it did, the Department was hedging its bets in a pretty transparent way. It attempted only to prove, for these specifications, that she was seriously injured. That was not questioned, but, standing alone, was insufficient at the time of the incident to require Respondent Shaughnessy to take the steps he is now charged with failing to take. Therefore he is found Not Guilty.

Activity Logs

Specification Nos. 2 against Respondents Rodriguez and Paulino each charge them with failing to make complete and accurate Activity Log entries. It was undisputed that neither Respondent made any entries in the lined sections of their memo books (see DX 5, Respondent Rodriguez; DX 4, Respondent Paulino) concerning this incident. Respondent Rodriguez wrote a partial license plate number for the suspect car on the fly sheet. Respondents were required to address the incident in more detail. Even if it had not been a pursuit, they still should have noted that they responded to a pick-up assignment of a vehicle collision. That is especially true for Respondent Rodriguez, who completed the complaint report. Therefore, Respondents are found Guilty.

PENALTY

In order to determine an appropriate penalty, Respondents' service records were examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent Shaughnessy was appointed to the Department on June 30, 1992. Respondents Rodriguez and Paulino were appointed on January 10, 2007. Information from their personnel folders that was

considered in making these penalty recommendations is contained in attached confidential memoranda.

Respondents have been found Guilty of various failures regarding a vehicle pursuit. While on conditions patrol, they observed the suspect car commit a traffic infraction. When they decided to pull it over and turned on their emergency lights, the car fled. Although Respondent Shaughnessy, the supervisor, instructed the driver, Respondent Rodriguez, to cease the pursuit, Respondent Rodriguez failed to do so and Respondent Shaughnessy failed to take further supervisory steps to ensure that his subordinate obeyed his directive. Respondent Paulino, the recorder, failed to radio the central dispatcher to advise of the pursuit. When the suspect vehicle collided with a pedestrian, Respondent Shaughnessy failed to ascertain her true medical condition and instead reported that she simply was "not likely to die." This meant that the crime scene was unsecured and neither the PDS nor AIS was notified. Respondents Rodriguez and Paulino also failed to notate the incident in their Activity Logs.

When the victim died about a week later, the hospital contacted AIS. They viewed video surveillance of the area and saw what appeared to be a Department vehicle in a pursuit of the suspect car. AIS notified IAB. Respondents' failure to notify the Department of the pursuit or the serious nature of the collision essentially conveyed the impression that they had engaged in an unwise pursuit, which led to a deadly collision they then tried to cover up.

Respondent Shaughnessy

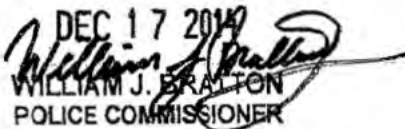
Prior recent penalties involving supervisory failures with regard to vehicle pursuits have ranged anywhere from 20 to 35 vacation days. See, e.g., Case No. 2011-3503 (July 11, 2013) (30 days for failing to notify dispatcher upon commencement of pursuit, to query license plate of

suspect vehicle, to verify operator's identity before transport to hospital, to direct officer to accompany operator to hospital, to inform patrol supervisor of the circumstances, and to make Activity Log entries); *Case No. 2011-6511* (Jan. 22, 2013) (20 days for failing to conduct complete investigation of a collision between motorcycle and Department vehicle, to notify the desk officer of the details of the pursuit and collision, to make Activity Log entries, and to prepare Vehicle Pursuit Report). Respondent Shaughnessy's record with the Department, see Confidential Mem., infra, is exemplary. Yet this incident was exactly the kind where robust supervisory decision-making and action were needed. This tribunal accordingly recommends that Respondent Shaughnessy forfeit 25 vacation days as a penalty.

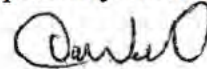
Respondents Rodriguez & Paulino

In *Case Nos. 2010-2524 & -25* (Aug. 16, 2012), after pleading guilty, two police officers each forfeited 5 vacation days for not putting over the radio that they were engaged in a vehicle pursuit. Further, two detectives were penalized recently with the loss of 5 days each for failing to note their entry into a building in their Activity Logs. See *Case Nos. 2010-1965, -67 & -68* (Nov. 21, 2012). Under the circumstances of this case, both of Respondent Shaughnessy's subordinates should be treated equally for penalty purposes. Therefore, Respondents Rodriguez and Paulino, respectively for their combined acts of misconduct, each should forfeit 10 vacation days.

APPROVED

DEC 17 2014

WILLIAM J. BRALTON
POLICE COMMISSIONER

Respectfully submitted,



David S. Weisel

Assistant Deputy Commissioner Trials

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
SERGEANT JAMES SHAUGHNESSY
TAX REGISTRY NO. 902408
DISCIPLINARY CASE NO. 2011-6501

Respondent Shaughnessy's last three annual evaluations were as follows: he received an overall rating of 4.0 "Highly Competent" in 2014, a 4.5 "Highly/Extremely Competent" in 2013 and a 5.0 "Extremely Competent" in 2012. He has 17 medals for Excellent Police Duty and five medals for Meritorious Police Duty. [REDACTED]
[REDACTED]

He was placed on Level II Disciplinary Monitoring on May 23, 2012, as a result of this case. He has no prior formal disciplinary record.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner Trials

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER EDWARD RODRIGUEZ
TAX REGISTRY NO. 943745
DISCIPLINARY CASE NO. 2011-6520

Respondent Rodriguez received an overall rating of 4.0 “Highly Competent” in his 2013, 2012 and 2011 annual evaluations. [REDACTED]
[REDACTED] He has no prior formal disciplinary record.

For your consideration.


David S. Weisel
Assistant Deputy Commissioner – Trials

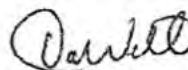
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER EURIS PAULINO
TAX REGISTRY NO. 943657
DISCIPLINARY CASE NO. 2012-7357

Respondent Paulino's last three annual evaluations were as follows: he received an overall rating of 4.0 "Highly Competent" in 2013 and a 4.5 "Highly/Extremely Competent" in 2012 and 2011. [REDACTED]

[REDACTED]. He has no prior formal disciplinary record.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner Trials